



Authority Support Required

1 assets are awaiting your Letters of Administration to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)

[View Asset List →](#)

Trustee Authority

Secure, Notify, Preserve • Immediately After Death

Notice & Communications

Uncontested: Admin Filing → Letters Same Day • County Surrogate's Court Filing

Trust Asset Marshaling

Inventory Due Within 90 Days (N.J.S.A. 3B:15-1) • After Letters Issued

Creditor Exposure & Expenses

6-Month Claim Window – First Publication (N.J.S.A. 3B:22-4) • After First Publication

Tax & Accounting

Power of Sale or Court Confirmation • After Inventory Filed

Distribution & Close

Class A: Exempt | Class C/D: Waiver Required • After Tax Waivers Received



Trustee Authority

CURRENT

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**Locate Trust Document & All Amendments** NEXT STEP

Find the original signed trust document and any amendments. This is your primary legal authority.



Upload Original Trust Document



Upload All Amendments

**Confirm Successor Trustee Designation**

Verify your appointment as successor trustee per the trust terms.

**Sign Trustee Acceptance / Affidavit**

Formally accept your role as successor trustee by signing an acceptance document.



Upload Trustee Acceptance Form

**Prepare Certification of Trust**

Create a Certification of Trust (abstract of trust) to prove your authority to banks and institutions without revealing full trust terms.



Upload Certification of Trust



Upload Death Certificate

**Obtain EIN for Trust/Estate**

Apply for an Employer Identification Number from the IRS. Required for opening trust bank accounts and filing tax returns.



Upload IRS Form SS-4



Apply for EIN Online

**File IRS Form 56**

Formally notify the IRS of your fiduciary relationship as successor trustee. This ensures tax notices are sent to you directly.



Upload IRS Form 56

**Secure Trust Property**

Change locks on real property, forward mail, secure valuables, and ensure insurance coverage remains active.

**Issue Certificate of Trust**

Prepare and notarize a Certificate of Trust to present successor trustee authority to banks.



UPLOAD MISCELLANEOUS

**Notice & Communications**

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1 ASSET

**Identify All Trust Beneficiaries**

Review the trust to identify all current and remainder beneficiaries. Include contingent beneficiaries.



Upload Beneficiary List

**Send Statutory Notice to Beneficiaries**

State law typically requires formal notice to beneficiaries and heirs within a specific timeframe (e.g., 30–90 days).



Upload Notice Letters



Upload Certified Mail Receipts

**Notify State Health Agencies**

The trustee must notify the state Department of Health or Medicaid recovery agency to allow for potential recovery claims.

**Respond to Trust Copy Requests**

Beneficiaries have the right to request a copy of the trust. Respond within the timeframe specified by state law.

**Flag Minor Beneficiaries**

Identify any beneficiaries under age 18. Distributions to minors require special handling.

**Monitor Statutory Contest Period**

Wait for the statutory contest period to expire before making final distributions. Document any contests or concerns raised.



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Trust Asset Marshaling

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Letters of Administration required

[Upload Documents](#) →

Creditor Exposure & Expenses

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Creditor Exposure Assessment

Review known debts and potential claims against the trust estate. This is a silent legal check, not formal probate publication.



Pay Funeral & Last Illness Expenses

These are typically the first obligations to pay from trust assets.

[Upload Funeral Invoice](#)[Upload Medical Bills](#)

Pay Ongoing Property Expenses

Maintain trust property by paying mortgage, property taxes, insurance, and utilities from trust accounts.



Evaluate Trust Solvency

Compare total trust assets against all known and potential liabilities to determine solvency status.



Pay Valid Debts

Pay legitimate debts from trust accounts according to trust terms and state priority rules.

 **UPLOAD MISCELLANEOUS**



Tax & Accounting



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File Decedent's Final Form 1040

File the decedent's final individual income tax return for the year of death.



Upload Form 1040



Upload W-2s



Upload 1099s



Determine Post-Death Tax Posture

A revocable trust becomes irrevocable at death. Determine whether it's now a grantor trust, complex trust, or simple trust for tax purposes.



File Trust/Estate Income Tax Return (Form 1041)

File Form 1041 for trust income earned after death. Issue K-1s to beneficiaries for their share of income.



Upload Form 1041



Upload Schedule K-1



Evaluate Estate Tax Return Requirement

Determine if Form 706 is required based on total estate value, including trust assets.



Upload Form 706 (if required)



Obtain Tax Clearances

Confirm all taxes are paid before making final distributions to beneficiaries.



Prepare Trust Accounting

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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UPLOAD MISCELLANEOUS



Distribution & Close

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Complete liquidation first

[View Assets](#) →



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